

DEFAULT DEADLINES — All are calendar days except the EMD (3 business days)		
MILESTONE	DEFAULT TIMELINE	PARAGRAPH
EMD to Escrow ★ BUSINESS DAYS — not calendar days	3 business days after acceptance	Para. 3D(1)
Loan Contingency	17 days after acceptance	Para. L(1) / 8A
Appraisal Contingency	17 days after acceptance	Para. L(2) / 8B
Inspection / Investigation Contingency	17 days after acceptance	Para. L(3) / 8C
Insurance Contingency	17 days after acceptance	Para. L(4) / 8D
Review of Seller Documents	17 days after acceptance, or 5 days after delivery — whichever is later	Para. L(5)
Title / Preliminary Report Review	17 days after acceptance, or 5 days after delivery — whichever is later	Para. L(6)
Seller Deliver All Disclosures & Documents	7 days after acceptance	Para. N(1)
Sign and Return Escrow Instructions	5 days after delivery from escrow	Para. N(2)
HOA Documents Ordered by Seller	3 days after acceptance	Para. N(3)
Smoke / CO Detector / Water Heater Bracing	7 days after acceptance	Para. N(4)
Final Verification of Condition (Walkthrough)	5 days BEFORE Close of Escrow	Para. J / 16
Offer Expiration	3 calendar days after buyer signatures at 5:00 PM	Para. 3C / 32A
Standard Close of Escrow	30 days after acceptance — negotiable	Para. 3B
Contingency Removal	Written only — C.A.R. Form CR-B — verbal has no legal effect	Para. 14

KEY DOLLAR RULES	
RULE	DETAILS
Liquidated damages cap	3% of purchase price — 1 to 4 unit owner-occupied only — Para. 29 must be initialed by both
Typical EMD range	1% to 3% of purchase price — paid to escrow directly, never to the seller
Home warranty — seller maximum	\$625 — Para. Q(18)
Civil penalty — wrongful cancellation refusal	Up to \$1,000 — Civil Code Section 1057.3
Prorations calculated on	30-day month — Para. 17

POSSESSION RULES	
SITUATION	RULE / FORM REQUIRED
Default possession time	6 PM on COE date upon notice of recordation from escrow — Para. 3M
Seller leaseback 29 days or fewer	Use C.A.R. Form SIP — Seller In Possession — Para. 3M(2)
Seller leaseback 30 days or more	Use C.A.R. Form RLAS — creates landlord-tenant relationship — Para. 3M(2)
Tenant-occupied property	Use C.A.R. Form TOPA — Tenant Occupied Property Addendum — Para. 4A

DISPUTE RESOLUTION	
STEP	DETAILS
Step 1 — Mediation (required before legal action)	Parties must attempt mediation first — consumermediation.org — Para. 3O

Step 2 — Arbitration (only if both parties initial Paragraph 31E)	Paragraph 31E waives right to jury trial — binding arbitration
Notice to Buyer to Perform (NBP)	Minimum 2 days notice — required before seller can cancel for buyer breach
Notice to Seller to Perform (NSP)	Minimum 2 days notice — required before buyer can cancel for seller breach
Demand to Close Escrow (DCE)	Minimum 3 days before cancellation — C.A.R. Form DCE

THE BIG 5 CONTINGENCIES — What They Protect and How to Remove

CONTINGENCY	PARA.	WHAT IT PROTECTS	DEFAULT	HOW TO REMOVE
Loan (Financing)	L(1)/8A	Losing deposit if loan is denied or falls through	17 days after acceptance	C.A.R. Form CR-B — loan box — must be in writing
Appraisal	L(2)/8B	Being stuck buying if home appraises below purchase price. Note: C.A.R. Form CR-B — Appraisal box — under FVAC	17 days	As Noted in CR-B — Appraisal box
Inspection / Investigation	L(3)/8C	Unforeseen property conditions during the inspection period — all buyer investigations	17 days	C.A.R. Form CR-B — after ALL inspection reports
Insurance	L(4)/8D	Unable to obtain homeowner's insurance at a reasonable cost. Critical for CR-B fire coverage first	17 days	C.A.R. Form CR-B — fire coverage first
Title Review	L(6)/8F	Defects, liens, easements, or encumbrances found in the Preliminary Title Report	15 days on the Preliminary Title Report	C.A.R. Form CR-B — review full prelim first

COST ALLOCATION DEFAULTS — Paragraph Q (Who Pays What)

ITEM	WHO PAYS	PARA.
Natural Hazard Disclosure (NHD) Report	Seller	Q(1)
Optional Wildfire Report	Negotiated	Q(2)
Escrow Fee	Each party pays their own	Q(7)
Owner's Title Insurance Policy	Seller	Q(8)
Buyer's Lender Title Insurance Policy	Buyer	Q(9)
County Transfer Tax	Seller	Q(10)
City Transfer Tax	Seller	Q(11)
HOA Fee for Preparing Disclosures	Seller	Q(12)
HOA Certification Fee	Buyer	Q(13)
HOA Transfer Fees	Seller (move-out) / Buyer (move-in)	Q(14)
Home Warranty — if seller pays	Seller — max \$625	Q(18)
Smoke / CO Detector Compliance	Negotiated	Q(4)
Government Point of Sale Inspections	Negotiated	Q(5)

KEY C.A.R. FORMS

FORM	NAME AND PURPOSE
CR-B	Contingency Removal — Buyer — ONLY way to remove contingencies — must be in writing
NBP / NSP	Notice to Buyer/Seller to Perform — minimum 2 days each
DCE	Demand to Close Escrow — minimum 3 days before cancellation
CC	Cancellation of Contract
RR	Request for Repair
SIP / RLAS	Seller In Possession (29 days or fewer) / Residential Lease After Sale (30+ days)
TOPA	Tenant Occupied Property Addendum
AD	Agency Disclosure — give to YOUR buyer before or when writing the offer
TDS	Transfer Disclosure Statement — seller delivers — required by law

SPQ	Seller Property Questionnaire — seller delivers
AVID	Agent Visual Inspection Disclosure — required on every transaction
FVAC	FHA/VA Amendatory Clause — required for all FHA and VA transactions
WFA	Wire Fraud Advisory — give to buyer, warn about wire fraud
IDA	Increased Deposit Addendum

ALWAYS REMEMBER

RULE	WHAT IT MEANS
EMD goes to escrow — never the seller	Paid directly to escrow holder, never to seller or listing agent
Remove contingencies in writing only	C.A.R. Form CR-B — verbal removal has absolutely no legal effect
Days = calendar days	Every RPA deadline is calendar days — EMD is the ONLY exception (3 business days)
Buyer agent is NOT a party to the RPA	Brokers facilitate — the parties are buyer and seller — Para. 1D
Present all offers promptly	CA DRE requirement — withholding or delaying is a fiduciary violation
Dual agency requires written consent	Both buyer AND seller must consent in writing before or at signing
AVID is required on every transaction	Document your own visual inspection in writing — every time
Acceptance = signed AND delivered	Offer is not accepted until signed by seller AND delivered to buyer/agent
Verbal agreements mean nothing	Every change and modification must be in writing signed by both parties
Liquidated damages require initials	3% cap only applies if Para. 29 is initialed — not automatic
TDS cancellation right	3 days after personal delivery — 5 days after mail or email delivery
Removing contingencies at offer time	Stated as "against Agent advice" in the RPA itself — Para. 8I